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বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ

আপীল সম্পর্কিত
ফৌজদারী

জেলা-Sylhet

ফৌজদারী কার্যবিধি আইনের ধারার অধীনের রিভিশন
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Md. Abdullah

আবেদনকারী

মাধ্যম Mr. Emdadul Haque Emdad, Advocate

বনাম

The State

প্রতিপক্ষ

Mr. Rezaul Karim (Reza), D.A.G with
Mr. Md. Shahidul Islam, A.A.G with
Ms. Sharmin Hamid, A.A.G

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শান্তি ও দণ্ডদেশ

Present:

Mr. Justice Md. Shohrowardi

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদে- শের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	04.11.2024	Heard the learned Advocate Mr. Emdadul Haque Emdad who appeared on behalf of the convict-petitioner and the learned Deputy Attorney General Mr. Rezaul Karim (Reza) who appeared on behalf of the State. The delay of 240 days in filing criminal revision is condoned. Records be called for. Let a Rule be issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 01.01.2024 passed by the Additional Sessions Judge, Court No. 5, Sylhet in Criminal Appeal No. 515 of 2017 allowing the appeal in part thereby modifying the judgment and order of conviction and sentence dated 14.11.2017 passed by the Chief Judicial Magistrate, Sylhet in Jointapur Police Station Case No. 11 dated 14.07.2013 corresponding to G.R. No. 105 of 2013 reducing sentence of the convict-petitioner under Section 324 of the Penal Code, 1860 to suffer rigorous imprisonment for 01(one) year 02(two) months and to pay a fine of Tk. 5,000(five thousand), in default, to suffer simple imprisonment for 02(two) months in lieu of to suffer rigorous imprisonment for 06 (six) months and to pay a fine of Tk. 5,000(five thousand), in default, to suffer simple imprisonment for 02(two) months should not be set aside and/or such other or further order or orders passed as to this Court may seem fit	

		and proper. The Rule is made returnable within 4(four) weeks from date. Let the realization of fine be stayed. Let the convict-petitioner Md. Abdullah, son of Abdul Malique be enlarged on bail for 6(six) months from the date on furnishing bail bond to the satisfaction of the Additional Sessions Judge, Court No. 5, Sylhet.
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